The Library

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This enclosed, segmented space, observed at every point, in which the individuals are inserted in a fixed place, in which the slightest movements are supervised, in which all events are recorded, in which an uninterrupted work of writing links the centre and periphery, in which power is exercised without division, according to a continuous hierarchical figure, in which each individual is constantly located, examined and distributed among the living beings, the sick and the dead – all this constitutes a compact model of the disciplinary mechanism. The plague is met by order; its function is to sort out every possible confusion: that of the disease, which is transmitted when bodies are mixed together; that of the evil, which is increased when fear and death overcome prohibitions. It lays down for each individual his place, his body, his disease and his death, his well-being, by means of an omnipresent and omniscient power that subdivides itself in a regular, uninterrupted way even to the ultimate determination of the individual, of what characterizes him, of what belongs to him, of what happens to him. Against the plague, which is a mixture, discipline brings into play its power, which is one of analysis. A whole literary fiction of the festival grew up around the plague: suspended laws, lifted prohibitions, the frenzy of passing time, bodies mingling together without respect, individuals unmasked, abandoning their statutory identity and the figure under which they had been recognized, allowing a quite different truth to appear. But there was also a political dream of the

plague, which was exactly its reverse: not the collective festival, but strict divisions; not laws transgressed, but the penetration of regulation into even the smallest details of everyday life through the mediation of the complete hierarchy that assured the capillary functioning of power; not masks that were put on and taken off, but the assignment to each individual of his 'true' name, his 'true' place, his 'true' body, his 'true' disease. The plague as a form, at once real and imaginary, of disorder had as its medical and political correlative discipline. Behind the disciplinary mechanisms can be read the haunting memory of 'contagions', of the plague, of rebellions, crimes, vagabondage, desertions, people who appear and disappear, live and die in disorder.

If it is true that the leper gave rise to rituals of exclusion, which to a certain extent provided the model for and general form of the great Confinement, then the plague gave rise to disciplinary projects. Rather than the massive, binary division between one set of people and another, it called for multiple separations, individualizing distributions, an organization in depth of surveillance and control, an intensification and a ramification of power. The leper was caught up in a practice of rejection, of exile-enclosure; he was left to his doom in a mass among which it was useless to differentiate; those sick of the plague were caught up in a meticulous tactical partitioning in which individual differentiations were the constricting effects of a power that multiplied, articulated and subdivided itself; the great confinement on the one hand; the correct training on the other. The leper and his separation; the plague and its segmentations. The first is marked; the second analysed and distributed. The exile of the leper and the arrest of the plague do not bring with them the same political dream. The first is that of a pure community, the second that of a disciplined society. Two ways of exercising power over men, of controlling their relations, of separating out their dangerous mixtures. The plague-stricken town, traversed throughout with hierarchy, surveillance, observation, writing; the town immobilized by the functioning of an extensive power that bears in a distinct way over all individual bodies – this is the utopia of the perfectly governed city. The plague (envisaged as a possibility at least) is the trial in the course of which one may define ideally the exercise of disciplinary power. In order to make rights and laws

function according to pure theory, the jurists place themselves in imagination in the state of nature; in order to see perfect disciplines functioning, rulers dreamt of the state of plague. Underlying disciplinary projects the image of the plague stands for all forms of confusion and disorder; just as the image of the leper, cut off from all human contact, underlies projects of exclusion.

They are different projects, then, but not incompatible ones. We see them coming slowly together, and it is the peculiarity of the nineteenth century that it applied to the space of exclusion of which the leper was the symbolic inhabitant (beggars, vagabonds, madmen and the disorderly formed the real population) the technique of power proper to disciplinary partitioning. Treat 'lepers' as 'plague victims', project the subtle segmentations of discipline onto the confused space of internment, combine it with the methods of analytical distribution proper to power, individualize the excluded, but use procedures of individualization to mark exclusion – this is what was operated regularly by disciplinary power from the beginning of the nineteenth century in the psychiatric asylum, the penitentiary, the reformatory, the approved school and, to some extent, the hospital. Generally speaking, all the authorities exercising individual control function according to a double mode; that of binary division and branding (mad/sane; dangerous/harmless; normal/abnormal); and that of coercive assignment, of differential distribution (who he is; where he must be; how he is to be characterized; how he is to be recognized; how a constant surveillance is to be exercised over him in an individual way, etc.). On the one hand, the lepers are treated as plague victims; the tactics of individualizing disciplines are imposed on the excluded; and, on the other hand, the universality of disciplinary controls makes it possible to brand the 'leper' and to bring into play against him the dualistic mechanisms of exclusion. The constant division between the normal and the abnormal, to which every individual is subjected, brings us back to our own time, by applying the binary branding and exile of the leper to quite different objects; the existence of a whole set of techniques and institutions for measuring, supervising and correcting the abnormal brings into play the disciplinary mechanisms to which the fear of the plague gave rise. All the mechanisms of power which, even today, are disposed around the abnormal individual, to brand him and to alter

him, are composed of those two forms from which they distantly derive.

Bentham's *Panopticon* is the architectural figure of this composition. We know the principle on which it was based: at the periphery, an annular building; at the centre, a tower; this tower is pierced with wide windows that open onto the inner side of the ring; the peripheric building is divided into cells, each of which extends the whole width of the building; they have two windows, one on the inside, corresponding to the windows of the tower; the other, on the outside, allows the light to cross the cell from one end to the other. All that is needed, then, is to place a supervisor in a central tower and to shut up in each cell a madman, a patient, a condemned man, a worker or a schoolboy. By the effect of backlighting, one can observe from the tower, standing out precisely against the light, the small captive shadows in the cells of the periphery. They are like so many cages, so many small theatres, in which each actor is alone, perfectly individualized and constantly visible. The panoptic mechanism arranges spatial unities that make it possible to see constantly and to recognize immediately. In short, it reverses the principle of the dungeon; or rather of its three functions – to enclose, to deprive of light and to hide – it preserves only the first and eliminates the other two. Full lighting and the eye of a supervisor capture better than darkness, which ultimately protected. Visibility is a trap.

To begin with, this made it possible – as a negative effect – to avoid those compact, swarming, howling masses that were to be found in places of confinement, those painted by Goya or described by Howard. Each individual, in his place, is securely confined to a cell from which he is seen from the front by the supervisor; but the side walls prevent him from coming into contact with his companions. He is seen, but he does not see; he is the object of information, never a subject in communication. The arrangement of his room, opposite the central tower, imposes on him an axial visibility; but the divisions of the ring, those separated cells, imply a lateral invisibility. And this invisibility is a guarantee of order. If the inmates are convicts, there is no danger of a plot, an attempt at collective escape, the planning of new crimes for the future, bad reciprocal influences; if they are patients, there is no danger of

contagion; if they are madmen there is no risk of their committing violence upon one another; if they are schoolchildren, there is no copying, no noise, no chatter, no waste of time; if they are workers, there are no disorders, no theft, no coalitions, none of those distractions that slow down the rate of work, make it less perfect or cause accidents. The crowd, a compact mass, a locus of multiple exchanges, individualities merging together, a collective effect, is abolished and replaced by a collection of separated individualities. From the point of view of the guardian, it is replaced by a multiplicity that can be numbered and supervised; from the point of view of the inmates, by a sequestered and observed solitude (Bentham, 60–64).

Hence the major effect of the Panopticon: to induce in the inmate a state of conscious and permanent visibility that assures the automatic functioning of power. So to arrange things that the surveillance is permanent in its effects, even if it is discontinuous in its action; that the perfection of power should tend to render its actual exercise unnecessary; that this architectural apparatus should be a machine for creating and sustaining a power relation independent of the person who exercises it; in short, that the inmates should be caught up in a power situation of which they are themselves the bearers. To achieve this, it is at once too much and too little that the prisoner should be constantly observed by an inspector: too little, for what matters is that he knows himself to be observed; too much, because he has no need in fact of being so. In view of this, Bentham laid down the principle that power should be visible and unverifiable. Visible: the inmate will constantly have before his eyes the tall outline of the central tower from which he is spied upon. Unverifiable: the inmate must never know whether he is being looked at at any one moment; but he must be sure that he may always be so. In order to make the presence or absence of the inspector unverifiable, so that the prisoners, in their cells, cannot even see a shadow, Bentham envisaged not only venetian blinds on the windows of the central observation hall, but, on the inside, partitions that intersected the hall at right angles and, in order to pass from one quarter to the other, not doors but zig-zag openings; for the slightest noise, a gleam of light, a brightness in a half-opened door would betray the presence of the guardian.[2] The Panopticon is a

machine for dissociating the see/being seen dyad: in the peripheric ring, one is totally seen, without ever seeing; in the central tower, one sees everything without ever being seen.[3]

It is an important mechanism, for it automatizes and disindividualizes power. Power has its principle not so much in a person as in a certain concerted distribution of bodies, surfaces, lights, gazes; in an arrangement whose internal mechanisms produce the relation in which individuals are caught up. The ceremonies, the rituals, the marks by which the sovereign's surplus power was manifested are useless. There is a machinery that assures dissymmetry, disequilibrium, difference. Consequently, it does not matter who exercises power. Any individual, taken almost at random, can operate the machine: in the absence of the director, his family, his friends, his visitors, even his servants (Bentham, 45). Similarly, it does not matter what motive animates him: the curiosity of the indiscreet, the malice of a child, the thirst for knowledge of a philosopher who wishes to visit this museum of human nature, or the perversity of those who take pleasure in spying and punishing. The more numerous those anonymous and temporary observers are, the greater the risk for the inmate of being surprised and the greater his anxious awareness of being observed. The Panopticon is a marvellous machine which, whatever use one may wish to put it to, produces homogeneous effects of power.

A real subjection is born mechanically from a fictitious relation. So it is not necessary to use force to constrain the convict to good behaviour, the madman to calm, the worker to work, the schoolboy to application, the patient to the observation of the regulations. Bentham was surprised that panoptic institutions could be so light: there were no more bars, no more chains, no more heavy locks; all that was needed was that the separations should be clear and the openings well arranged. The heaviness of the old 'houses of security', with their fortress-like architecture, could be replaced by the simple, economic geometry of a 'house of certainty'. The efficiency of power, its constraining force have, in a sense, passed over to the other side – to the side of its surface of application. He who is subjected to a field of visibility, and who knows it, assumes responsibility for the constraints of power; he makes them play spontaneously upon himself; he inscribes in himself the power relation in

which he simultaneously plays both roles; he becomes the principle of his own subjection. By this very fact, the external power may throw off its physical weight; it tends to the non-corporal; and, the more it approaches this limit, the more constant, profound and permanent are its effects: it is a perpetual victory that avoids any physical confrontation and which is always decided in advance.

the Panopticon also does the work of a naturalist. It makes it possible to draw up differences: among patients, to observe the symptoms of each individual, without the proximity of beds, the circulation of miasmas, the effects of contagion confusing the clinical tables; among schoolchildren, it makes it possible to observe performances (without there being any imitation or copying), to map aptitudes, to assess characters, to draw up rigorous classifications and, in relation to normal development, to distinguish 'laziness and stubbornness' from 'incurable imbecility'; among workers, it makes it possible to note the aptitudes of each worker, compare the time he takes to perform a task, and if they are paid by the day, to calculate their wages (Bentham, 60–64).

So much for the question of observation. But the Panopticon was also a laboratory; it could be used as a machine to carry out experiments, to alter behaviour, to train or correct individuals. To experiment with medicines and monitor their effects. To try out different punishments on prisoners, according to their crimes and character, and to seek the most effective ones. To teach different techniques

simultaneously to the workers, to decide which is the best. To try out pedagogical experiments

The Panopticon is a privileged place for experiments on men, and for analysing with complete certainty the transformations that may be obtained from them. The Panopticon may even provide an apparatus for supervising its own mechanisms. In this central tower, the director may spy on all the employees that he has under his orders: nurses, doctors, foremen, teachers, warders; he will be able to judge them continuously, alter their behaviour, impose upon them the methods he thinks best; and it will even be possible to observe the director himself. An inspector arriving unexpectedly at the centre of the Panopticon will be able to judge at a glance, without anything being concealed from him, how the entire establishment is functioning. And, in any case, enclosed as he is in the middle of this architectural mechanism, is not the director's own fate entirely bound up with it? The incompetent physician who has allowed contagion to spread, the incompetent prison governor or workshop manager will be the first victims of an epidemic or a revolt. ' "By every tie I could devise", said the master of the Panopticon, "my own fate had been bound up by me with theirs" ' (Bentham, 177). The Panopticon functions as a kind of laboratory of power. Thanks to its mechanisms of observation, it gains in efficiency and in the ability to penetrate into men's behaviour; knowledge follows the advances of power, discovering new objects of knowledge over all the surfaces on which power is exercised.

It is polyvalent in its applications; it serves to reform prisoners, but also to treat patients, to instruct schoolchildren, to confine the insane, to supervise workers, to put beggars and idlers to work. It is a type of location of bodies in space, of distribution of individuals in relation to one another, of hierarchical organization, of disposition of centres and channels of power, of definition of the instruments and modes of intervention of power, which can be implemented in hospitals, workshops, schools, prisons. Whenever one is dealing with a multiplicity of individuals on whom a task or a particular form of behaviour must be imposed, the panoptic schema may be used. It is – necessary modifications apart – applicable 'to all establishments whatsoever, in which, within a space not too large

to be covered or commanded by buildings, a number of persons are meant to be kept under inspection' (Bentham, 40; although Bentham takes the penitentiary house as his prime example, it is because it has many different functions to fulfil – safe custody, confinement, solitude, forced labour and instruction).

In each of its applications, it makes it possible to perfect the exercise of power. It does this in several ways: because it can reduce the number of those who exercise it, while increasing the number of those on whom it is exercised. Because it is possible to intervene at any moment and because the constant pressure acts even before the offences, mistakes or crimes have been committed. Because, in these conditions, its strength is that it never intervenes, it is exercised spontaneously and without noise, it constitutes a mechanism whose effects follow from one another. Because, without any physical instrument other than architecture and geometry, it acts directly on individuals; it gives 'power of mind over mind'. The panoptic schema makes any apparatus of power more intense: it assures its economy (in material, in personnel, in time); it assures its efficacity by its preventative character, its continuous functioning and its automatic mechanisms. It is a way of obtaining from power 'in hitherto unexampled quantity', 'a great and new instrument of government . . .; its great excellence consists in the great strength it is capable of giving to *any* institution it may be thought proper to apply it to' (Bentham, 66).

The panoptic schema, without disappearing as such or losing any of its properties, was destined to spread throughout the social body; its vocation was to become a generalized function.

The celebrated, transparent, circular cage, with its high tower, powerful and knowing, may have been for Bentham a project of a perfect disciplinary institution; but he also set out to show how one may 'unlock' the disciplines and get them to function in a diffused,

multiple, polyvalent way throughout the whole social body. These disciplines, which the classical age had elaborated in specific, relatively enclosed places – barracks, schools, workshops – and whose total implementation had been imagined only at the limited and temporary scale of a plague-stricken town, Bentham dreamt of transforming into a network of mechanisms that would be everywhere and always alert, running through society without interruption in space or in time. The panoptic arrangement provides the formula for this generalization. It programmes, at the level of an elementary and easily transferable mechanism, the basic functioning of a society penetrated through and through with disciplinary mechanisms.

There are two images, then, of discipline. At one extreme, the discipline-blockade, the enclosed institution, established on the edges of society, turned inwards towards negative functions: arresting evil, breaking communications, suspending time. At the other extreme, with panopticism, is the discipline-mechanism: a functional mechanism that must improve the exercise of power by making it lighter, more rapid, more effective, a design of subtle coercion for a society to come. The movement from one project to the other, from a schema of exceptional discipline to one of a generalized surveillance, rests on a historical transformation: the gradual extension of the mechanisms of discipline throughout the seventeenth and eighteenth centuries, their spread throughout the whole social body, the formation of what might be called in general the disciplinary society.

A whole disciplinary generalization – the Benthamite physics of power represents an acknowledgement of this – had operated throughout the classical age. The spread of disciplinary institutions, whose network was beginning to cover an ever larger surface and occupying above all a less and less marginal position, testifies to this: what was an islet, a privileged place, a circumstantial measure, or a singular model, became a general formula;

1. *The functional inversion of the disciplines.* At first, they were expected to neutralize dangers, to fix useless or disturbed populations, to avoid the inconveniences of over-large assemblies; now they were being asked to play a positive role, for they were becoming able to do so, to increase the possible utility of individuals. Military discipline is no longer a mere means of preventing looting, desertion or failure to obey orders among the troops; it has become a basic technique to enable the army to exist, not as an assembled crowd, but as a unity that derives from this very unity an increase in its forces; discipline increases the skill of each individual, coordinates these skills, accelerates movements, increases fire power, broadens the fronts of attack without reducing their vigour, increases the capacity for resistance, etc. The discipline of the workshop, while remaining a way of enforcing respect for the regulations and authorities, of preventing thefts or losses, tends to increase aptitudes, speeds, output and therefore profits; it still exerts a moral influence over behaviour, but more and more it treats actions in terms of their results, introduces bodies into a machinery, forces into an economy. When, in the seventeenth century, the provincial schools or the Christian elementary schools were founded, the justifications given for them were above all negative: those poor who were unable to bring up their children left them 'in ignorance of their obligations: given the difficulties they have in earning a living, and themselves having been badly brought up, they are unable to communicate a sound upbringing that they themselves never had'; this involves three major inconveniences: ignorance of God, idleness (with its consequent drunkenness, impurity, larceny, brigandage); and the formation of those gangs of beggars, always ready to stir up public disorder and 'virtually to exhaust the funds of the Hôtel-Dieu' (Demia, 60–61). Now, at the beginning of the Revolution, the end laid down for primary education was to be, among other things, to 'fortify', to 'develop the body', to prepare

the child 'for a future in some mechanical work', to give him 'an observant eye, a sure hand and prompt habits' (Talleyrand's Report to the Constituent Assembly, 10 September 1791, quoted by Léon, 106). The disciplines function increasingly as techniques for making useful individuals. Hence their emergence from a marginal position on the confines of society, and detachment from the forms of exclusion or expiation, confinement or retreat. Hence the slow loosening of their kinship with religious regularities and enclosures. Hence also their rooting in the most important, most central and most productive sectors of society. They become attached to some of the great essential functions: factory production, the transmission of knowledge, the diffusion of aptitudes and skills, the war-machine. Hence, too, the double tendency one sees developing throughout the eighteenth century to increase the number of disciplinary institutions and to discipline the existing apparatuses.

With the police, one is in the indefinite world of a

supervision that seeks ideally to reach the most elementary particle, the most passing phenomenon of the social body:

> And, in order to be exercised, this power had to be given the instrument of permanent, exhaustive, omnipresent surveillance, capable of making all visible, as long as it could itself remain invisible. It had to be like a faceless gaze that transformed the whole social body into a field of perception: thousands of eyes posted everywhere, mobile attentions ever on the alert, a long, hierarchized network which, according to Le Maire, comprised for Paris the forty-eight *commissaires*, the twenty *inspecteurs*, then the 'observers', who were paid regularly, the '*basses mouches*', or secret agents, who were paid by the day, then the informers, paid according to the job done, and finally the prostitutes. And this unceasing observation had to be accumulated in a series of reports and registers; throughout the eighteenth century, an immense police text increasingly covered society by means of a complex documentary organization (on the police registers in the eighteenth century, cf. Chassaigne). And, unlike the methods of judicial or administrative writing, what was registered in this way were forms of behaviour, attitudes, possibilities, suspicions – a permanent account of individuals' behaviour.

'Discipline' may be identified neither with an institution nor with an apparatus; it is a type of power, a modality for its exercise, comprising a whole set of instruments, techniques, procedures, levels of application, targets; it is a 'physics' or an 'anatomy' of power, a technology. And it may be taken over either by 'specialized' institutions (the penitentiaries or 'houses of correction' of the nineteenth century), or by institutions that use it as an essential instrument for a particular end (schools, hospitals), or by pre-existing authorities that find in it a means of reinforcing or reorganizing their internal mechanisms of power (one day we should show how intra-familial relations, essentially in the parents–children cell, have become 'disciplined', absorbing since the classical age external schemata, first

educational and military, then medical, psychiatric, psychological, which have made the family the privileged locus of emergence for the disciplinary question of the normal and the abnormal); or by apparatuses that have made discipline their principle of internal functioning (the disciplinarization of the administrative apparatus from the Napoleonic period), or finally by state apparatuses whose major, if not exclusive, function is to assure that discipline reigns over society as a whole (the police).

On the whole, therefore, one can speak of the formation of a disciplinary society in this movement that stretches from the enclosed disciplines, a sort of social 'quarantine', to an indefinitely generalizable mechanism of 'panopticism'. Not because the disciplinary modality of power has replaced all the others; but because it has infiltrated the others, sometimes undermining them, but serving as an intermediary between them, linking them together, extending them and above all making it possible to bring the effects of power to the most minute and distant elements. It assures an infinitesimal distribution of the power relations.

A few years after Bentham, Julius gave this society its birth certificate (Julius, 384–6). Speaking of the panoptic principle, he said that there was much more there than architectural ingenuity: it was an event in the 'history of the human mind'. In appearance, it is merely the solution of a technical problem; but, through it, a whole type of society emerges. Antiquity had been a civilization of spectacle. 'To render accessible to a multitude of men the inspection of a small number of objects': this was the problem to which the architecture of temples, theatres and circuses responded. With spectacle, there was a predominance of public life, the intensity of festivals, sensual proximity. In these rituals in which blood flowed, society found new vigour and formed for a moment a single great body. The modern age poses the opposite problem: 'To procure for a small number, or even for a single individual, the instantaneous view of a great multitude.' In a society in which the principal elements are no longer the community and public life, but, on the one hand, private individuals and, on the other, the state, relations can be regulated only in a form that is the exact reverse of the spectacle: 'It was to the modern age, to the ever-growing influence of the state, to its ever more profound intervention in all the details

and all the relations of social life, that was reserved the task of increasing and perfecting its guarantees, by using and directing towards that great aim the building and distribution of buildings intended to observe a great multitude of men at the same time.'

Julius saw as a fulfilled historical process that which Bentham had described as a technical programme. 'Our society is one not of spectacle, but of surveillance; under the surface of images, one invests bodies in depth; behind the great abstraction of exchange, there continues the meticulous, concrete training of useful forces; the circuits of communication are the supports of an accumulation and a centralization of knowledge; the play of signs defines the anchorages of power; it is not that the beautiful totality of the individual is amputated, repressed, altered by our social order, it is rather that the individual is carefully fabricated in it, according to a whole technique of forces and bodies.'

Historically, the process by which the bourgeoisie became in the course of the eighteenth century the politically dominant class was masked by the establishment of an explicit, coded and formally egalitarian juridical framework, made possible by the organization of a parliamentary, representative régime. But the development and generalization of disciplinary mechanisms constituted the other, dark side of these processes. The general juridical form that guaranteed a system of rights that were egalitarian in principle was supported by these tiny, everyday, physical mechanisms, by all those systems of micro-power that are essentially non-egalitarian and asymmetrical that we call the disciplines. And although, in a formal way, the representative régime makes it possible, directly or indirectly, with or without relays, for the will of all to form the fundamental authority of sovereignty, the disciplines provide, at the base, a guarantee of the submission of forces and bodies. The real, corporal disciplines constituted the foundation of the formal, juridical liberties. The contract may have been regarded as the ideal foundation of law and political power; panopticism constituted the technique, universally widespread, of coercion. It continued to work in depth on the juridical structures of society, in order to make the effective mechanisms of power function in opposition to the formal framework that it had acquired. The 'Enlightenment', which discovered the liberties, also invented the disciplines.

In appearance, the disciplines constitute nothing more than an infra-law. They seem to extend the general forms defined by law to the infinitesimal level of individual lives; or they appear as methods of training that enable individuals to become integrated into these general demands. They seem to constitute the same type of law on a different scale, thereby making it more meticulous and more indulgent. The disciplines should be regarded as a sort of counter-law. They have the precise role of introducing insuperable asymmetries and excluding reciprocities. First, because discipline creates between individuals a 'private' link, which is a relation of constraints entirely different from contractual obligation; the acceptance of a discipline may be underwritten by contract; the way in which it is imposed, the mechanisms it brings into play, the non-reversible

subordination of one group of people by another, the 'surplus' power that is always fixed on the same side, the inequality of position of the different 'partners' in relation to the common regulation, all these distinguish the disciplinary link from the contractual link, and make it possible to distort the contractual link systematically from the moment it has as its content a mechanism of discipline. We know, for example, how many real procedures undermine the legal fiction of the work contract: workshop discipline is not the least important. Moreover, whereas the juridical systems define juridical subjects according to universal norms, the disciplines characterize, classify, specialize; they distribute along a scale, around a norm, hierarchize individuals in relation to one another and, if necessary, disqualify and invalidate. In any case, in the space and during the time in which they exercise their control and bring into play the asymmetries of their power, they effect a suspension of the law that is never total, but is never annulled either. Regular and institutional as it may be, the discipline, in its mechanism, is a 'counter-law'. And, although the universal juridicism of modern society seems to fix limits on the exercise of power, its universally widespread panopticism enables it to operate, on the underside of the law, a machinery that is both immense and minute, which supports, reinforces, multiplies the asymmetry of power and undermines the limits that are traced around the law.

What is now imposed on penal justice as its point of application, its 'useful' object, will no longer be the body of the guilty man set up against the body of the king; nor will it be the juridical subject of an ideal contract; it will be the disciplinary individual. The extreme point of penal justice under the Ancien Régime was the infinite segmentation of the body of the regicide: a manifestation of the strongest power over the body of the greatest criminal, whose total destruction made the crime explode into its truth. The ideal point of penality today would be an indefinite discipline: an interrogation without end, an investigation that would be extended without limit to a meticulous and ever more analytical observation, a judgement that would at the same time be the constitution of a file that was never closed, the calculated leniency of a penalty that would be interlaced with the ruthless curiosity of an examination, a procedure that would be at the same time the permanent measure of a gap in relation to an inaccessible norm and the asymptotic movement that strives to meet in infinity. The public execution was the logical culmination of a procedure governed by the Inquisition. The practice of placing individuals under 'observation' is a natural extension of a justice imbued with disciplinary methods and examination procedures. Is it surprising that the cellular prison, with its regular chronologies, forced labour, its authorities of surveillance and

registration, its experts in normality, who continue and multiply the functions of the judge, should have become the modern instrument of penality? Is it surprising that prisons resemble factories, schools, barracks, hospitals, which all resemble prisons?